

Law English

Participant workbook: client-safe language, legal terminology, research discussion, contracts, discovery, compliance, and advocacy practice

Audience: advanced ESL learners working in law, compliance, contracts, litigation support, legal operations, and related business roles

Focus: high-level professional English for legal workplaces, including client intake, confidentiality, privilege, litigation, discovery, legal writing, contracts, compliance, negotiation, advocacy, and realistic law-office dialogue.

Designed for advanced ESL learners who already work in law, compliance, contracts, legal operations, paralegal support, or law-adjacent business roles and need field-specific fluency.

Teaching stance: this is legal English training, not legal advice. Laws, procedures, professional rules, and court practices vary by jurisdiction and role. Learners should practice language, judgment, and documentation habits while relying on qualified counsel and local rules for legal conclusions.

How to Use This Workbook

This workbook helps you speak and write more precisely in legal workplaces. The goal is not to sound dramatic or overly formal. The goal is to protect meaning: facts, legal issues, authority, uncertainty, confidentiality, risk, and next steps.

Your starting point

- Which legal conversations are hardest for you: client intake, partner updates, contract markups, discovery calls, research memos, compliance reviews, settlement, or hearings?
- Which legal terms do you understand when reading but avoid when speaking?
- When someone pressures you for a quick answer, do you become too vague, too certain, too indirect, or too technical?
- What is one recent legal-workplace sentence you wish you had phrased more carefully?

Use the guided dialogue activities below. Every item has four choices and a rationale in the answer key; no open-ended writing is required.

Legal Matter Language

Layer	Useful verbs	Example sentence
Facts	gather, confirm, preserve, document, verify	We need to confirm the timeline before assessing exposure.
Issues	identify, frame, narrow, separate, prioritize	The immediate issue is whether the deadline has been triggered.
Authority	research, cite, distinguish, reconcile, update	The case is persuasive, but not binding in this jurisdiction.
Procedure	file, serve, move, oppose, object, compel	We may need to move to compel if the production remains incomplete.
Contracts	draft, redline, negotiate, accept, reserve	We can accept the concept if the indemnity is capped.
Risk	assess, quantify, mitigate, escalate, disclose	The legal risk is moderate, but the reputational risk may be higher.

Practice Pages

Module 1. Legal English Mindset: Facts, Issues, Rules, Risk

Legal English is precise because legal work turns on small distinctions: fact vs allegation, argument vs holding, risk vs conclusion, and client goal vs legal theory.

What you should be able to do

- Separate facts, assumptions, allegations, issues, rules, analysis, and conclusions.
- Use careful caveat language without sounding weak.
- Convert vague business questions into legally answerable questions.

Guided dialogue completion

Situation

A potential client calls after receiving a demand letter from a former business partner.

Speaker	Line
Client	They are lying. Can you tell them we will sue immediately?
Legal team	I understand this feels urgent. Before we discuss strategy, I need to gather facts and run a conflict check.
ESL learner	Can you send the demand letter, the contract, and any recent emails with the former partner? Also, please list the company names and individuals involved so we can check conflicts.
Client	So do we have a case?
ESL learner	I cannot assess that responsibly from one call. After we review the documents and confirm _____, we can identify claims, defenses, deadlines, and practical options.

Choose the missing language

Option	Phrase
A	scope
B	evidence
C	risk
D	owner

Module 2. Client Intake, Scope, Conflicts, and Confidentiality

The first conversation can create legal, ethical, and business risk. Legal professionals must gather facts, preserve confidentiality, check conflicts, define scope, and avoid premature promises.

What you should be able to do

- Conduct an intake conversation with empathy and control.
- Use role-appropriate language around confidentiality, conflicts, privilege, and engagement.
- Summarize facts and next steps without creating an unintended commitment.

Guided dialogue completion

Situation

A partner asks for a quick memo on whether a forum-selection clause is enforceable.

Speaker	Line
Partner	I need an answer by noon. Is the forum-selection clause enforceable?
ESL learner	I can give you a short answer by noon. To focus the research, which jurisdiction controls, and are we challenging enforcement or defending it?
Partner	Defending it in federal court. The contract chooses Delaware law but the case was filed in California.
ESL learner	Understood. I will check binding Ninth Circuit authority, Delaware choice-of-law relevance, any public-policy exceptions, and procedural posture. I will flag contrary authority _____.

Choose the missing language

Option	Phrase
A	disclosure
B	separately
C	approval
D	control

Module 3. Litigation Lifecycle: Pleadings, Motions, Deadlines, Strategy

Litigation conversations are shaped by procedure. Learners need language for complaints, answers, affirmative defenses, motions, orders, discovery, settlement, trial, judgment, and appeal.

What you should be able to do

- Explain the basic lifecycle of a civil litigation matter.
- Discuss pleadings, motions, jurisdiction, venue, deadlines, and remedies.
- Ask strategy questions that connect legal theory to evidence and client goals.

Guided dialogue completion

Situation

A SaaS vendor and enterprise customer negotiate risk allocation.

Speaker	Line
Sales lead	The customer rejected our limitation of liability. Can we just accept?
Lawyer	Not without understanding the exposure.
ESL learner	The issue is not only the cap amount. Their redline excludes confidentiality, data security, IP infringement, and indemnity claims from the cap. That could create uncapped exposure.
Sales lead	What is a reasonable fallback?
ESL learner	We can offer a super-cap for data security and IP claims, tied to a multiple of fees, while keeping consequential damages excluded. I would not accept unlimited liability without executive _____.

Choose the missing language

Option	Phrase
A	approval
B	owner
C	scope
D	timeline

Module 4. Discovery, ESI, Privilege Review, and Depositions

Discovery is language-heavy and risk-heavy. Teams must negotiate scope, preserve evidence, collect ESI, review privilege, prepare witnesses, and object without becoming unprofessional.

What you should be able to do

- Use discovery terminology in meet-and-confer calls and internal updates.
- Explain proportionality, burden, relevance, privilege, work product, and preservation.
- Prepare and debrief a deposition using clear, ethical language.

Guided dialogue completion

Situation

Opposing counsel requests all communications from five years across every product line.

Speaker	Line
Opposing counsel	Your objections are boilerplate. We need all communications to understand the pattern.
ESL learner	We disagree that the request is proportional as drafted. It covers unrelated products, custodians, and time periods. We can propose targeted custodians, search terms, and a three-year window tied to the claims.
Opposing counsel	You are withholding relevant evidence.
ESL learner	We are not refusing discovery. We are asking to tailor the _____ to nonprivileged, relevant, and proportional material. If you identify specific gaps, we can discuss them.

Choose the missing language

Option	Phrase
A	approval
B	scope
C	assumption
D	mitigation

Module 5. Legal Research, Authority, and Memo Writing

Legal writing requires a hierarchy of authority and disciplined reasoning. A persuasive answer shows the issue, rule, relevant facts, contrary authority, and practical recommendation.

What you should be able to do

- Distinguish statute, regulation, case law, binding authority, persuasive authority, holding, dicta, and standard of review.
- Write a focused research question and a useful short answer.
- Present legal uncertainty without burying the conclusion.

Guided dialogue completion

Situation

A product manager will be deposed about an internal defect report.

Speaker	Line
Witness	What if I do not remember? I do not want to look unprepared.
ESL learner	If you do not remember, say that. Do not guess. Listen to the full question, answer only that question, and ask for clarification if a term is unclear.
Witness	Can I explain the whole background?
ESL learner	Only if the question asks for it. Your job is to testify truthfully, not to volunteer every fact. If privileged legal advice comes up, pause so counsel can _____ it.

Choose the missing language

Option	Phrase
A	assumption
B	address
C	scope
D	timeline

Module 6. Contracts, Redlines, and Negotiation

Contract English is technical and strategic. Learners need to discuss obligations, risk allocation, remedies, negotiation posture, and business fallback positions.

What you should be able to do

- Use contract terms such as representation, warranty, covenant, condition, indemnity, limitation of liability, termination, governing law, and dispute resolution.
- Explain why a clause matters without over-legalizing the business conversation.
- Negotiate redlines with firm but professional language.

Guided dialogue completion

Situation

A review team is deciding whether internal emails are privileged.

Speaker	Line
Reviewer	Legal is copied, so this is privileged.
ESL learner	Maybe, but not automatically. We need to ask whether the email seeks or gives legal advice, who received it, and whether confidentiality was maintained.
Reviewer	This one discusses pricing strategy with counsel copied.
ESL learner	That may be business advice rather than legal advice. Let's tag it for senior review instead of making the privilege call _____.

Choose the missing language

Option	Phrase
A	control
B	ourselves
C	mitigation
D	approval

Module 7. Corporate, Compliance, Regulatory, and Investigation Language

In-house and regulatory legal work often requires risk judgment under imperfect facts. Learners need language for materiality, disclosure, due diligence, governance, investigation, remediation, and enforcement.

What you should be able to do

- Discuss compliance issues using evidence, policy, exposure, materiality, and remediation language.
- Ask investigation questions that preserve documents and avoid contaminating witness accounts.
- Brief business leaders without turning uncertainty into either alarm or reassurance.

Guided dialogue completion

Situation

The team discusses whether to challenge a weak claim early.

Speaker	Line
Client	The claim is false. Can we file a motion to dismiss?
Lawyer	A motion to dismiss usually tests legal sufficiency, not whether the facts are true.
ESL learner	If the complaint fails to state a required element, dismissal may be worth researching. If our argument depends on evidence outside the pleadings, summary judgment may be the better later vehicle.
Client	So we wait?
ESL learner	We should evaluate cost, timing, likelihood of success, and whether an early motion educates the court or only delays _____.

Choose the missing language

Option	Phrase
A	discovery
B	disclosure
C	evidence
D	risk

Module 8. Advocacy, Settlement, Ethics, and Professional Judgment

Legal professionals need persuasive language that stays accurate, ethical, and client-centered. Strong advocacy does not mean overclaiming; strong settlement posture does not mean hiding risk from the client.

What you should be able to do

- Use advocacy language in oral argument, mediation, settlement, and client counseling.
- Respond to difficult questions from judges, partners, clients, opposing counsel, and regulators.
- Recognize when professional responsibility concerns require escalation.

Guided dialogue completion

Situation

During mediation, the client wants to reject a settlement offer on principle.

Speaker	Line
Client	I would rather go to trial than pay them anything.
ESL learner	That is a valid business position, but let's separate principle from decision risk. Trial could vindicate the company, but it also means legal fees, management distraction, uncertainty, and potential adverse precedent.
Client	What range do you recommend?
ESL learner	Based on current _____, litigation cost, and downside exposure, I recommend authority up to this range, but only with confidentiality, no admission of liability, and a mutual release.

Choose the missing language

Option	Phrase
A	control
B	disclosure
C	evidence
D	approval

Phrase Bank

Careful legal conclusions

- Based on the facts we have now, the stronger argument appears to be...
- That conclusion depends on jurisdiction, procedural posture, and several facts we still need to confirm.
- I would not characterize this as settled law without checking controlling authority.
- The business risk is clear, but the legal exposure needs more factual development.

Client intake and scope

- Before we discuss strategy, I need to gather facts and confirm there is no conflict.
- I can explain the process, but I cannot give a legal conclusion until we review the documents.
- That issue may be outside the current scope, so we should confirm whether you want us to evaluate it.
- Please do not send privileged or sensitive materials until we confirm the proper channel and scope.

Research and writing

- What jurisdiction, deadline, procedural posture, and intended audience should guide the research?
- The short answer is yes, but with two important limitations.
- The best authority is binding, but the facts are distinguishable.
- There is contrary persuasive authority, so I would frame the conclusion as moderate rather than strong.

Discovery and privilege

- We object to the request as overbroad and disproportionate as drafted.
- We are willing to discuss targeted custodians, search terms, date ranges, and document categories.
- This may involve legal advice, but we should escalate the privilege call rather than assume.
- Please preserve potentially relevant documents and do not alter or delete related communications.

Contracts and negotiation

- Our concern is not the wording alone; it is the risk allocation behind the wording.
- We can accept the concept if the clause includes a cap, a defined scope, and an exclusion for indirect damages.
- That is not our preferred position, but a possible fallback is...
- I need business approval before accepting uncapped liability or an open-ended indemnity.

Advocacy and settlement

- Respectfully, Your Honor, the record supports a narrower point.
- The strongest point for the other side is..., but our response is...
- Settlement avoids litigation cost and uncertainty, but it also requires acceptable non-monetary terms.
- We can recommend a range, but the client must approve settlement authority.

Answer Key and Rationale

Check each answer after completing the dialogue. The rationale shows why the correct phrase is the strongest fit for the real workplace situation.

1. Client Intake: Strong Emotions, Missing Facts

Correct answer	Why it fits
A. scope	'scope' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

2. Partner Assignment: Research Memo Under Pressure

Correct answer	Why it fits
B. separately	'separately' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

3. Contract Redline: Indemnity and Liability Cap

Correct answer	Why it fits
A. approval	'approval' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

4. Discovery Meet-and-Confer: Overbroad Requests

Correct answer	Why it fits
B. scope	'scope' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

5. Deposition Prep: Nervous Witness

Correct answer	Why it fits
B. address	'address' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

6. Privilege Review: Copying a Lawyer Is Not Magic

Correct answer	Why it fits
B. ourselves	'ourselves' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

7. Motion Strategy: Dismiss or Summary Judgment?

Correct answer	Why it fits
A. discovery	'discovery' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.

8. Settlement Caucus: Risk, Cost, and Authority

Correct answer	Why it fits
C. evidence	'evidence' is the precise phrase used in this professional response. The other choices do not fit the dialogue's meaning or grammar.